



CHAPTER xxxvi.

An Act for incorporating and conferring powers on the
York Town and Blackwater Gas Company and for other
purposes. A.D. 1904.
[24th June 1904.]

WHEREAS in the year one thousand eight hundred and fifty-nine certain persons formed themselves into a gas company under the name of the York Town and Blackwater Gas and Coke Company Limited (hereinafter referred to as "the limited company") for the purpose of the manufacture of gas and the supplying therewith the towns of York Town in the county of Surrey and Blackwater in the county of Hants and their precincts and any places adjoining thereto or such other places as might be agreed upon at any extraordinary general meeting of such company and also for the sale of coke and other materials obtainable from such manufacture and also for the supplying pipes and fittings and all such other things as are generally used or required by the consumers of gas and such company was duly registered pursuant to the Joint Stock Companies Act 1856:

And whereas by the York Town and Blackwater Gas Order 1890 confirmed by the Gas Orders Confirmation (No. 1) Act 1890 (hereinafter called "the Order of 1890") the limited company were empowered to maintain and continue gasworks upon the lands described in the schedule to such Order and to supply gas within so much of the parish of Frimley in the county of Surrey and of the parishes of Hawley and Yately in the county of Southampton as is coloured red upon a map deposited in the year one thousand eight hundred and ninety in the Private Bill Office of the House of Commons:

53 & 54 Vict.
c. ccvi.

A.D. 1904. And whereas by the York Town and Blackwater Gas Order
62 & 63 Vict. 1899 confirmed by the Gas and Water Orders Confirmation Act
c. cxliii. 1899 (hereinafter called "the Order of 1899") the limited company
were empowered to purchase additional land and construct and
maintain additional gasworks upon the lands described in the
schedule to such Order :

And whereas the share capital of the limited company
authorised by the Order of 1890 and the Order of 1899 consists
of—

(a) The original share capital amounting to three thousand
pounds divided into one thousand two hundred shares
of two pounds and ten shillings each and entitled
under the Order of 1890 to a standard dividend of
ten per centum per annum out of the profits of the
undertaking ;

(b) Additional capital of ten thousand pounds consisting of
two thousand nine hundred and twenty shares of two
pounds and ten shillings each entitled under the Order
of 1890 and the Order of 1899 to a standard dividend
of seven per centum per annum out of the profits of
the undertaking and six hundred preference shares of
two pounds and ten shillings each bearing interest at
the rate of five per centum per annum and one thousand
two hundred pounds consisting of premiums obtained
on the sale of such shares and not entitled to dividend ;

the whole of which capital has been subscribed and fully paid up
and the limited company have borrowed by debenture bonds on
the security of their undertaking the sum of two thousand four
hundred and fifty pounds at the rate of four per centum per
annum :

And whereas it is expedient that the limited company should
be dissolved and re-incorporated with further powers :

And whereas the demand for gas in the district supplied by
the limited company has increased and is increasing and it is
expedient that the Company be authorised to enlarge extend and
improve the existing gasworks and to acquire the lands described
in Part I. of the Schedule to this Act for gasworks and that
additional capital be provided for those purposes and for the other
purposes of this Act :

And whereas the parishes of Sandhurst and Crowthorne in the
county of Berks are adjacent to the present limits of the supply of

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Act, 1904.

the limited company and are not now supplied with gas and it is expedient that the Company should be empowered to supply gas within those parishes: A.D. 1904.

And whereas the limits of supply as defined by this Act include a portion of the area within which the Ascot District Gas Company were by the Ascot District Gas Act 1882 authorised to supply gas but the said company have not in fact supplied gas within such portion and it is expedient that the Company should be authorised to supply gas therein and that so much of the Ascot District Gas Act 1882 as authorises the Ascot District Gas Company to supply gas within such portion should be repealed: 45 & 46 Vict.
c. cli.

And whereas further facilities are required for the conveyance of coal and other materials to the gasworks of the Company and of coke residuals and other products therefrom and in order that such facilities may be given and the convenience of the public promoted it is expedient to empower the Company to make and maintain the railway described or referred to in this Act:

And whereas plans and sections showing the lines and levels of the railway authorised by this Act and the lands required or which may be taken for the purposes thereof and plans of the lands which may be required under the powers of this Act for the purposes of the extension of the gasworks and also books of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the respective clerks of the peace for the counties of Surrey and Southampton and are hereinafter respectively referred to as "the deposited plans sections and books of reference":

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PRELIMINARY.

1. This Act may be cited as the York Town and Blackwater Gas Act 1904. Short title.

A.D. 1904.

Incorpora-
tion of Acts.

2. The Companies Clauses Consolidation Acts 1845 to 1889 (except the provisions with respect to the conversion of borrowed money into capital and except Part IV. of the Companies Clauses Act 1863) the Gasworks Clauses Act 1847 (except sections thirty to thirty-four) the Gasworks Clauses Act 1871 the Lands Clauses Acts the Railways Clauses Consolidation Act 1845 (except the provisions thereof with respect to the carrying of passengers and goods upon the railway and the tolls to be taken thereon) and sections nine ten eleven and twelve of the Railways Clauses Act 1863 (so far as they are applicable for the purposes and not inconsistent with the powers of this Act) are subject to the provisions of this Act incorporated with and form part of this Act :

Provided that section thirteen of the Gasworks Clauses Act 1847 shall be read and construed as if the words "or any premises" were inserted after the words "private building" and that section thirty-five of the same Act shall be read and construed as if the words from "in case the whole" down to "have been paid" were omitted therefrom and as if the expression "the prescribed rate" included the standard rates of dividend authorised by this Act or such rate as reduced or increased in accordance with the provisions of this Act together with any sum which under the provisions of this Act may be carried to the insurance fund.

Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

The expression "the Company" means the Company incorporated by this Act ;

The expression "the works" "the gasworks" and "the undertaking" respectively mean and include the gasworks and works connected therewith by this Act vested in or authorised to be made or maintained by the Company and any improvement thereof which they may construct under the powers of this Act and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively ;

The expression "the railway" means the railway by this Act authorised ;

The expression "the limits of supply" means the limits within which the Company are authorised by this Act to supply gas; A.D. 1904.
The expression "the Orders of 1890 and 1899" means the Order of 1890 and the Order of 1899.

4. The limits of supply shall be the parishes of Sandhurst and Crowthorne in the county of Berks and also the limits of supply defined upon the plan referred to in section five of the Order of 1890 being so much of the parish of Frimley in the county of Surrey as lies to the south of the north side of London Road between the centre of Blackwater Bridge and Knights Bridge Road and to the west of the east side of Knights Bridge Road and to the north-west and north of the south-east and south sides of Park Road between Knights Bridge Road and Frimley Road (leading from York Town to Frimley) and north of a straight line drawn due west from the south-west corner of Park Road through Watchetts Wood to the centre of the Blackwater River and east of the centre of the Blackwater River between such last-mentioned point and the centre of the north side of Blackwater Bridge and so much of the parishes of Hawley with Minley and Yately in the county of Southampton as lie within a radius of one mile and three hundred yards of the centre of Blackwater Bridge. Limits of supply.

5. So much of the Ascot District Gas Act 1882 as authorises the Ascot District Gas Company to supply gas within any parishes or parts of parishes which are included within the limits of supply are hereby repealed and from and after the passing of this Act all the powers of the Ascot District Gas Company with reference to the supply of gas within any such parishes or parts of parishes as aforesaid shall cease and determine and this Act shall have as full validity and effect as though such parishes or parts of parishes had never been included within the limits within which the Ascot District Gas Company were by the Ascot District Gas Act 1882 authorised to supply gas. Repeal of power of Ascot District Gas Company to supply gas within limits.

RE-INCORPORATION OF COMPANY.

6. From and after the passing of this Act the limited company shall be dissolved and the several persons and corporations who immediately before the passing of this Act were members of that company and all other persons and corporations who have subscribed to or who shall hereafter become proprietors in the undertaking and their executors administrators successors and Re-incorporation of Company.

A.D. 1904. assigns respectively shall be and are hereby united into a Company for the purposes hereinafter mentioned and for those purposes shall be and are hereby incorporated by the name of "The York Town and Blackwater Gas Company" and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act or of their undertaking.

General
purposes of
Company.

7. The Company shall be established for the purposes of acquiring maintaining altering improving enlarging extending and renewing the gasworks of the limited company and of manufacturing and supplying gas for lighting heating motive power and other purposes within the limits of supply and may provide produce sell dispose of and deal in gas coke tar and all other residual products resulting from the manufacture of gas and generally may carry on the business usually carried on by a gas company.

Present
property of
limited com-
pany vested
in Company
incorporated
by this Act.

8. Subject to the provisions of this Act all the lands gasworks erections buildings rights and easements which immediately before the passing of this Act were vested in the limited company or any person in trust for them or to which the limited company were in anywise entitled and all mains pipes plant plugs lamps irons retorts gauges meters gas stoves cookers gas fittings lamp posts syphons apparatus stock effects matters and things which have been by them purchased provided laid down erected or placed in any place or house within the limits of supply or which immediately before the passing of this Act were the property of the limited company and all moneys securities credits choses in action books papers plans effects and other property whatsoever which immediately before the passing of this Act belonged to the limited company or to any trustee on their behalf and the benefit of all contracts and engagements entered into by or on behalf of the limited company and immediately before the passing of this Act in force shall be and the same are hereby vested in the Company to the same extent and for the same estate and interest as the same were previously to the passing of this Act vested in the limited company or any trustee on their behalf and may according to the provisions of this Act be held and enjoyed sued for and recovered maintained altered discontinued removed dealt with and disposed of by the Company as they think fit.

Memo-
randum and
articles of

9. Subject to the provisions of this Act the memorandum and articles of association of the limited company shall as to any

prospective operation thereof be wholly void and the Company and the shareholders shall be exempted from all the provisions restrictions and requirements of any Act which applied to the limited company and the members thereof as such but nothing in this Act contained shall release or discharge any person from any liability or obligation in respect of any breach of the provisions of the said memorandum and articles of association incurred before the passing of this Act but such liability or obligation in respect of any such breach shall continue and save as in this Act otherwise provided may be enforced by or on behalf of the Company as nearly as may be in like manner as the same might have been enforced by or on behalf of the limited company if this Act had not been passed.

A.D. 1904.
—
association
of limited
company to
be void
without
prejudice to
antecedent
breaches
thereof.

10. Except as is by this Act otherwise expressly provided everything before the passing of this Act done or suffered by or with reference to the limited company or the members thereof as such shall be as valid as if the Company had not been incorporated and the said memorandum and articles of association had not been avoided by this Act and such incorporation and avoidance and this Act respectively shall accordingly be subject and without prejudice to everything so done or suffered and to all rights liabilities claims and demands both present and future which if the Company were not incorporated and the said memorandum and articles of association were not avoided by this Act and this Act were not passed would be incident to or consequent on any and every thing so done or suffered and with respect to all such rights liabilities claims and demands the Company and its shareholders and property shall to all intents and purposes represent the limited company and the members thereof as such and the property of the limited company as the case may be and the generality of this enactment shall not be restricted by any of the other clauses and provisions of this Act.

Nothing to
affect pre-
vious rights
and liabilities.

11. Except as is by this Act otherwise specially provided all purchases sales conveyances grants assurances deeds contracts bonds and agreements entered into or made before the passing of this Act by to or with the limited company or any trustees or persons acting on behalf of the limited company or by to or with any other person to whose rights and liabilities they have succeeded and now in force shall be as binding and of as full force and effect in every respect against or in favour of the Company and may be enforced as fully and effectually as if instead of the limited company or the

Contracts
prior to Act
to be bind-
ing.

A.D. 1904. — trustees or persons acting on behalf of the limited company the Company had been a party thereto.

Actions &c.
not to abate.

12. Nothing in this Act contained shall release discharge or suspend any action or other proceeding which was pending by or against the limited company or any member thereof in relation to the affairs of the limited company or to which the limited company or any member thereof in relation to such affairs were parties immediately before the passing of this Act but such action or other proceeding may be maintained prosecuted or continued by or in favour of or against the Company (as the case may be) in the same manner and as effectually and advantageously as the same might have been maintained prosecuted or continued by or in favour of or against the limited company or any member thereof if this Act had not been passed the Company and the shareholders therein being in reference to the matters aforesaid in all respects substituted for the limited company and its members respectively.

Trustees of
limited com-
pany to be
indemnified.

13. Every trustee or other person in whom or in whose name any lands works buildings easements rights property or effects belonging to the limited company were vested immediately before the passing of this Act and who (being authorised so to do) entered into any bond covenant contract or engagement in respect of the same or otherwise on behalf of the limited company shall be indemnified out of the funds and property of the Company against all liability (including costs charges and expenses) which he may sustain or incur or be put unto by reason of his having entered into such bond covenant contract or engagement.

Company
to satisfy
liabilities of
limited
company.

14. From and after the passing of this Act and except as is by this Act otherwise expressly provided the Company shall in all respects be subject to and shall discharge all obligations and liabilities to which the limited company immediately before the passing of this Act were subject and shall indemnify the members directors officers and servants of the limited company and their respective representatives from all such obligations and liabilities and from all expenses and costs in that behalf.

Recovery of
gas rents &c.

15. All gas rents and sums of money which immediately before the passing of this Act were due or accruing to the limited company shall be payable to and may be collected and recovered by the Company in like manner as if they had become payable for the like matters supplied or done under this Act.

16. All persons who immediately before the passing of this Act owed any money to the limited company or to any person on their behalf shall pay the same with all interest (if any) due or accruing upon the same to the Company and all debts and moneys which immediately before the passing of this Act were due or recoverable from the limited company or for the payment of which the limited company were or but for this Act would be liable shall be paid with all interest (if any) due or accruing upon the same by or be recoverable from the Company.

A.D. 1904.

As to pay-
ment of debts
owing before
passing of
Act.

17. Notwithstanding the avoidance of the said memorandum and articles of association all certificates (until cancelled under the powers of this Act) sales transfers and dispositions heretofore made or executed under them for and with respect to any shares in the limited company shall remain in full force and continue and be available in all respects as if they had not been avoided.

Certificates
&c. to remain
in force.

18. All documents books and writings which if the said dissolution and avoidance had not taken place would have been receivable in evidence shall be admitted as evidence in all courts and elsewhere notwithstanding such dissolution and avoidance.

Books &c.
continued
evidence.

19. All officers and servants of the limited company who were in office immediately before the passing of this Act shall hold and enjoy their respective offices and employments together with the salaries and emoluments thereunto annexed until they shall resign the same or be removed therefrom by the Company and shall be subject and liable to the like conditions obligations pains and penalties and to the like powers of removal and to the like rules restrictions and regulations in all respects whatsoever as if they had been appointed under this Act.

Officers to
continue un-
til removed.

20. The books kept by the limited company for entering the names and designations of the members thereof with the numbers of their shares and the proper distinguishing number of each share shall until some other register of shareholders shall be provided by the Company continue to be kept for the same purpose by the Company and be taken and considered as the register of shareholders required to be kept by the Companies Clauses Consolidation Act 1845.

Present
registers of
members to
be continued.

CAPITAL.

21. The capital of the Company shall be fifty thousand pounds whereof eleven thousand eight hundred pounds shall be divided

Capital.

A.D. 1904. — among the shareholders of the limited company in manner hereinafter provided and thirty-eight thousand two hundred pounds in this Act called "additional capital" shall be raised in the manner hereinafter mentioned and the capital to be divided among the shareholders of the limited company as to three thousand pounds thereof in this Act called "the original capital" shall be divided into three hundred shares of ten pounds each which shares are in this Act called "the original shares" as to seven thousand three hundred pounds thereof in this Act called "the old additional capital" shall be divided into seven hundred and thirty shares of ten pounds each which shares are in this Act called "the old shares" and the remaining one thousand five hundred pounds thereof in this Act called "the old preferred capital" shall be divided into one hundred and fifty shares of ten pounds each which shares are in this Act called "the preferred shares" and the Company may convert into stock the whole or any part of the original shares or the old shares or the additional capital when fully paid up.

Vesting of
original
capital &c.
in present
shareholders.

22. Subject to the provisions of this Act the original capital the old additional capital and the old preferred capital shall be appropriated to vested in and distributed among the several persons who immediately before the passing of this Act were the registered members of the limited company as follows The original shares shall be vested in and divided among such members who are then holders of the original share capital in the proportion of one original share for every four shares of such original share capital of the limited company and the old shares shall be vested in and divided among such members who are then holders of the additional capital entitled under the Orders of 1890 and 1899 to a standard dividend of seven per centum per annum in the proportion of one old share for every four shares of such additional capital of the limited company and the preferred shares shall be vested in and divided among such members who are then holders of the preferred capital created under the Orders of 1890 and 1899 in the proportion of one preferred share for every four shares of such preferred capital of the limited company Provided always that in order to effect such distribution in cases in which a single share or a number of shares in the original share capital the additional capital entitled under the Orders of 1890 and 1899 to a standard dividend of seven per centum per annum and the preferred capital created under the Orders of 1890 and 1899 of the limited company not

being four or a number divisible by four is at the passing of this Act held by any member of the limited company the Company may divide into fourth shares a sufficient number of the original shares old shares and preferred shares as the case may be and one of such fourth shares shall be vested in and appropriated to every such member of the limited company in substitution for each such share in the original capital the additional capital entitled under the Orders of 1890 and 1899 to a standard dividend of seven per centum per annum or the preferred capital created under the Orders of 1890 and 1899 as the case may be and every fourth share as the case may be so vested shall be subject and liable to the same trusts powers provisions declarations agreements charges liabilities liens and incumbrances as immediately before the passing of this Act affected the share for which the same is substituted and so as to give effect to and not revoke any testamentary disposition of or affecting the same Provided always that if at any time after the creation of such fourth shares four of such fourth shares created in respect of the original share capital or the additional capital entitled under the Orders of 1890 and 1899 to a standard dividend of seven per centum per annum or the preferred capital created under the Orders of 1890 and 1899 shall become vested in the same person or persons body or corporation such four fourth shares shall immediately merge and become consolidated into one original share or one old share or one preferred share of ten pounds as the case may be and be for ever thereafter dealt with as an original share or as an old share or as a preferred share as the case may be.

23. Such fourth shares as are created in respect of the original capital shall be numbered in arithmetical progression beginning with number one and every fourth share shall be distinguished by its appropriate number and entered in the register of shareholders and such fourth shares as are created in respect of the old additional capital shall also be numbered in arithmetical progression beginning with number one and every fourth share shall be distinguished by its appropriate number and entered in the register of shareholders and such fourth shares as are created in respect of the old preferred capital shall also be numbered in arithmetical progression beginning with number one and every fourth share shall be distinguished by its appropriate number and entered in the register of shareholders The directors shall cause an entry to be made in the register of shareholders of the division of any original share or old share or preferred share into fourth

Fourth
shares to be
numbered
and regis-
tered.

A.D. 1904. — shares and after the consolidation of any fourth shares into entire shares shall cause an entry thereof to be made in such register and the last-mentioned shares shall be numbered in arithmetical progression next after the then existing entire original shares or old shares or preferred shares as the case may be and be thenceforth entered in the register of shareholders and distinguished by their appropriate numbers.

Fourth shares to be fourth shares in capital of Company but not to confer right of voting.

24. The several fourth shares under this Act shall be fourth shares in the original capital the old additional capital or the old preferred capital of the Company as the case may be and subject as hereinafter mentioned shall confer have and be subject to all such rights qualifications privileges liabilities and incidents as attach and are incident to entire shares but no such fourth share shall confer a right of voting at meetings of the Company.

Company shall call in and cancel existing share certificates and issue new certificates in lieu thereof.

25. Subject to the provisions of this Act the Company shall call in and cancel the existing certificates of shares in the limited company and issue in lieu thereof certificates both in respect of shares and fourth shares in the form and under the conditions prescribed by the Companies Clauses Consolidation Act 1845 but the holders of such existing certificates of shares shall not be entitled to any certificate of proprietorship under this Act until they shall have delivered up to the Company to be cancelled the certificates of proprietorship in the limited company issued to them before the passing of this Act or shall have proved to the reasonable satisfaction of the Company the loss or destruction thereof.

Power to Company to raise additional capital.

26. The Company may from time to time raise additional capital not exceeding in the whole thirty-eight thousand two hundred pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any such share or stock vest in the person or corporation accepting the same unless and until the full price of such share or stock including any premium obtained upon the sale thereof shall have been paid in respect thereof Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of thirty-eight thousand two hundred pounds Provided also that the Company shall not raise by the issue of

preference shares or stock a greater amount of such additional capital than nineteen thousand one hundred pounds. A.D. 1904.

27. Notwithstanding anything in this Act contained the Company shall when any shares or stock created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserved price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserved price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bid or offer by tender of any such holder of shares or stock in the Company be the same in amount as any bid or offer made by any other person the bid or offer of such holder of shares or stock shall be accepted in preference and preference may in like manner be given to any employee or consumer of gas supplied by the Company whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of shares or stock in the Company.

New shares
or stock to
be offered by
auction or
tender.

28. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Purchase
money of
capital sold
to be paid
within three
months.

29. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the clerks of the district councils for the districts comprising any part of the limits of supply and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits of supply.

Notice to be
given as to
sale of shares
or stock.

A.D. 1904.

Disposal of
shares or
stock not
sold by
auction or
tender.

30. When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not sold the same may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender or may be offered at such reserved price to the holders of ordinary shares or ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 or to the employees of the Company or to the consumers of gas supplied by the Company or partly to one and partly to another or others Provided always that any shares or stock not so disposed of or so offered and not accepted in the case of shares or stock offered to the holders of ordinary shares or ordinary stock within the time prescribed by the said Act or in the case of shares or stock offered to such employees or consumers within the time limited by the Company shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock created under the powers of this Act except that the reserved price put upon such shares or stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any shares or stock not then sold may be disposed of by the directors or offered to the holders of ordinary shares or ordinary stock or to such employees or consumers at not less than the last-mentioned reserved price and so from time to time until the whole of such shares or stock is sold.

Application
of premium
arising on
issue of
shares or
stock.

31. Any sum of money which shall arise from the issue of any such shares or stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend Provided that in any case where a power to raise money by borrowing or to create a renewal fund or an insurance fund is made proportionate to the paid-up capital the premium received from the sale of shares or stock by auction or tender as hereinbefore provided shall for such purpose be reckoned as part of the paid-up capital.

Receipt in
case of

32. If any money is payable to a shareholder stockholder mortgagee or debenture stock holder being a minor idiot or lunatic

the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

A.D. 1904.

persons not
sui juris.

33. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums which together with the sum of two thousand four hundred and fifty pounds borrowed by the limited company shall not exceed in the whole one-third part of the amount of the capital of the Company at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845. before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof Provided that for the purposes of this section the existing paid-up capital of the Company shall be deemed to be thirteen thousand pounds.

Power to
borrow.

34. All mortgages bonds and debentures granted or issued by the limited company before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages bonds and debentures and subject to the terms thereof have priority over all mortgages and debenture stock granted created and issued by virtue of this Act.

Priority of
existing
mortgages
and debentures.

35. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than two thousand pounds in the whole.

Appoint-
ment of
receiver.

36. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of

Debenture
stock.

A.D. 1904. the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Priority of mortgages and debenture stock over other debts.

37. All money to be raised by the Company on mortgage or debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company which is entitled to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock nor shall anything in this section contained affect any claim for land taken used or occupied by the Company for the purposes of the Company's undertaking and works or injuriously affected by the construction thereof or by the exercise of any powers conferred on the Company.

Provisions as to auction &c. to apply to loan capital if raised at a higher rate of interest than four per centum.

38. The provisions of this Act relating to the offering of shares or stock for sale by public auction or by tender and to the sale thereof and to the application of the premium arising from such sale shall so far as applicable apply *mutatis mutandis* in relation to the granting of any mortgages bearing a higher rate of interest than four per centum per annum and to the issuing of any debenture stock bearing a higher rate of interest than four per centum per annum by the Company after the passing of this Act.

Application of moneys.

39. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied only to the purposes of this Act to which capital is properly applicable.

LIMITATION OF PROFITS.

Profits of Company limited.

40. Except as by this Act provided the profits of the Company to be divided among the shareholders in any year shall not exceed the following rates (which are in this Act referred to as "the standard rates of dividend") that is to say On the original capital the rate of ten pounds in respect of every one hundred pounds of such capital on the old additional capital the rate of seven pounds in respect of every one hundred pounds of such capital on the old preferred capital the rate of five pounds in

respect of every one hundred pounds of such capital and on the additional capital to be raised under the powers of this Act the rate of seven pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as ordinary capital and the rate of five pounds in respect of every one hundred pounds actually paid up of such capital as shall be issued as preference capital.

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41. In case in any year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of dividend at the prescribed maximum rate on each class of ordinary stock or shares in the capital of the Company a proportionate reduction shall be made in the dividend of each class.

Dividends on different classes of stock or shares to be paid proportionately.

42. The directors of the Company may if they think fit annually appropriate out of the revenue of the Company and as part of the expenditure on revenue account any sum not exceeding an amount equal to one per centum on the paid-up capital for the time being of the Company to be called "the renewal fund" to provide for the renewal and repair of their gasworks mains and pipes and may from time to time appropriate as occasion may require any portion of such fund to such purposes. Such fund shall be invested in any securities in which trustees are for the time being authorised to invest money and the dividends and interest arising from such securities shall also be invested in the same or like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to ten per centum on the paid-up capital for the time being of the Company. Provided that when and so often as the said fund shall reach such sum the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that if such fund be at any time reduced below such sum it may thereafter be made up to such sum and so from time to time as often as such reduction shall happen. Provided also that resort may from time to time be had to such fund for the purposes aforesaid notwithstanding the same may not have reached or may have been reduced below the full amount of ten per centum upon the capital of the Company as aforesaid. Provided also that for the purposes of this section the existing paid-up capital of the Company shall be deemed to be thirteen thousand pounds.

Renewals.

43. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on

If profits exceed amount

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—
limited ex-
cess may be
invested and
form an in-
surance fund.

the preference capital and dividend on the ordinary capital at the authorised rates the excess beyond the sum necessary for that purpose may from time to time to the extent of one per centum per annum upon the paid-up capital of the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accident strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen. Provided that when and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend. Provided also that resort may from time to time be had to the insurance fund to meet any extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one twentieth as aforesaid. Provided also that for the purposes of this section the existing paid-up capital of the Company shall be deemed to be thirteen thousand pounds.

Application
of excess of
profits over
authorised
rates of
dividend.

44. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and dividend at the authorised rates on the ordinary capital of the Company the excess or such portion of it as is not carried to the insurance fund shall be carried to the credit of the divisible profits of such undertaking for the next following year.

Power to
create a re-
serve fund.

45. Where in any year the dividend of the Company on the ordinary capital of the Company shall exceed the standard rates by reason of the price charged by the Company for gas in such year being below the standard price then out of the amount of the divisible profits of the Company applicable to the payment of such excess of dividend the Company may in such year set apart such sum as they shall think fit and all sums (if any) so set apart by the Company may be invested in Government

or other securities and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rates on the ordinary capital of the Company and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

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MEETINGS DIRECTORS &C.

46. The first ordinary meeting of the Company shall be held within eleven months after the passing of this Act and the subsequent ordinary meetings shall be held in the month of March in each year or at such other time as shall be appointed for for that purpose by an order of a general meeting.

Ordinary meetings.

47. The quorum of all general meetings whether ordinary or extraordinary shall be ten shareholders present in person or by proxy holding not less in the aggregate than two thousand pounds in the ordinary capital of the Company.

Quorum of meetings of Company.

48. The number of directors shall be seven but the Company may vary the number provided that the number be not at any time more than nine or less than three.

Number of directors.

49. The qualification of a director shall be the possession in his own right of not less than twenty shares.

Qualification of directors.

50. The quorum of a meeting of directors shall be three.

Quorum of directors.

51. The directors of the limited company namely Alfred Hughes Claypole Joseph Cuffling Alfred Hitchcock Louis Daniel Kelsey David Sparvell James Charles Thom and William Webb shall be the first directors of the Company and shall continue in office until the first ordinary meeting held after the passing of this Act.

First directors.
Election of directors.

At that meeting the shareholders present in person or by proxy may either continue in office the directors appointed by this Act or any of them or may elect a new body of directors or directors to supply the place of those not continued in office the directors appointed by this Act being if they continue qualified eligible for re-election and at the first ordinary meeting to be held

A.D. 1904. in every year after the first ordinary meeting the shareholders present in person or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having died or resigned shall continue to be directors until others are elected in their stead in manner provided by the same Act.

Directors
 not to be dis-
 qualified &c.

52. No person shall be disqualified from becoming or continuing a director of the Company by reason of his or any partner of his being or becoming interested in any contract with the Company either in his own behalf or as a member of any other company corporation local authority or partnership but no such person shall as a director vote in respect of any question as to any such contract or the remuneration attached to any such office or place of trust or profit.

Interim
 dividend.

53. The directors may in any year without calling a meeting of shareholders for the purpose declare an interim half-yearly dividend out of the then ascertained profits of the Company Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any one half year one half of the amount of the standard rates of dividend.

Closing of
 transfer
 books pre-
 vious to
 declaring
 interim
 dividend.

54. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company's principal office is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend.

Books to be
 balanced to
 31st day of
 December.

55. The period to which the books of the Company shall be balanced shall be the thirty-first day of December in each year.

RAILWAY TO GASWORKS.

Power to
 make rail-
 way.

56. Subject to the provisions of this Act the Company may make and maintain in the lines and according to the levels shown on the deposited plans and sections the railway hereinafter described

with all proper junctions sidings approaches works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as may be required for that purpose Provided always that the Company shall not enter upon take or use any land belonging to the South Eastern Railway Company without the consent of and upon terms approved by that company.

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The railway hereinbefore referred to and authorised by this Act is—

A railway 1 furlong 4·10 chains in length in the parish of Frimley in the county of Surrey and in the parish of Hawley with Minley in the county of Southampton commencing in the existing gasworks of the limited company at a point 120 yards or thereabouts measured in a south-easterly direction from the centre of Blackwater Bridge and 40 yards or thereabouts measured in a south-westerly direction from the most south-easterly corner of the land now used by the limited company for gasworks and terminating by a junction with the railway (Reading branch) of the South Eastern Railway Company at a point 300 yards or thereabouts measured in a southerly direction along the line of such railway from the centre of the level crossing carrying that railway over the London Road :

Provided that the junction proposed to be made between the railway by this Act authorised at its termination and the railway of the South Eastern Railway Company shall not be made except with the consent of and upon terms approved by the South Eastern Railway Company and the South Eastern and Chatham Railway Companies Managing Committee.

57. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Persons under disability may grant easements &c.

58. If the railway is not completed within five years from the passing of this Act then on the expiration of that period

Period for completion of railway.

A.D. 1904. — the powers by this Act granted to the Company for making and completing the railway or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Engines
waggons
and use of
railway.

59. It shall be lawful for the Company to provide use and employ locomotive engines or other motive power and carriages waggons trucks and other necessary rolling stock and to carry and convey upon the railway coals coke residual products and other things required for or produced at their gasworks and any other materials articles and things which the Company may require to carry or convey upon the railway to or from the lands described in the Schedule to this Act:

Provided always that if electrical energy is used as the motive power on the railway it shall only be used subject to and in accordance with the provisions of section 4 (Railways may be worked by electrical power) section 12 (Provisions as to use of electrical power) and section 13 (For protection of Post Office telegraph lines) of the South Eastern and London Chatham and Dover Railways Act 1903.

Agreements
with railway
companies.

60. The Company may enter into agreements with the South Eastern Railway Company or the South Eastern and Chatham Railway Companies Managing Committee with respect to the construction maintenance and user upon lands belonging to the Company and the said railway company of railway sidings leading to and from the gasworks of the Company and in connection therewith.

LANDS.

Power to
take lands.

61. Subject to the provisions of this Act the Company in addition to the other lands they are authorised to acquire may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference as they may require for the purposes of their undertaking.

Period for
compulsory
purchase
of lands.

62. The powers of the Company for the compulsory purchase of the lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Power to
purchase
lands by
agreement.
Gas not to
be manu-

63. The Company may for the purposes of their undertaking purchase take on lease and hold (by agreement but not otherwise) in addition to the lands described in the Schedule to this Act any lands and hereditaments not exceeding in the whole five acres

which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the Schedule to this Act.

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factured
except on
lands
scheduled.

64. Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands so far as such provisions in each case apply the Company may from time to time sell for all their estate and interest therein or lease for any term or terms not exceeding seven years any lands vested in them or acquired by them under the powers of this Act and which may not be required for the purposes of the Company Provided that the Company shall not erect or permit the erection on such lands as may be let or retained of any building other than buildings to be used in connection with their undertaking.

Company
may sell or
lease lands
not required.

WORKS.

65. Subject to the provisions of this Act the Company may upon the lands described in Part II. of the Schedule to this Act or any part or parts thereof maintain alter improve enlarge extend and renew or discontinue the existing gasworks of the limited company and may upon such lands or any part or parts thereof and on the lands described in Part I. of the said Schedule or any part or parts thereof if and when they have acquired such last-mentioned lands and whilst they are in possession thereof construct erect lay down provide maintain alter improve enlarge extend and renew or discontinue additional and other gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of supply and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar pitch asphaltum ammoniacal liquor oil sulphate of ammonia chemicals and all other products or residuum of any materials employed in or resulting from the manufacture of gas or the materials used therein.

Powers as to
construction
and main-
tenance of
gasworks &c.

66. The Company may upon the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street or road laid out but not dedicated to public use supply such premises with gas and may lay down and

Power to lay
pipes in
streets not
dedicated to
public use.

A.D. 1904. from time to time repair take up alter relay or renew in across or along such street or road such pipes and apparatus as may be requisite or proper for furnishing such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to
utilise pipes
for ancillary
purposes.

67. The Company may lay down place repair alter remove and renew subways mains pipes culverts wires and other apparatus within the limits of supply for the purpose of procuring conducting or disposing of any oil and other materials used by them in or resulting from any manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

For pro-
tection of
London and
South West-
ern Railway
Company.

68. For the protection of the London and South Western Railway Company (in this section referred to as "the South Western Company") the following provisions shall apply and have effect (viz.) :—

- (a) In laying down repairing or removing any mains or pipes or executing any other works in the exercise of the powers contained in this Act upon across over under or in any way affecting the South Western Railway or any bridge over or under such railway or any approaches to any such bridge within the South Western Company's boundary the same shall be done under the superintendence and to the reasonable satisfaction of the chief engineer of the South Western Company and according to such plans sections and specifications and except in case of urgent necessity at such times as shall be previously submitted to and as shall be reasonably approved in writing by him and shall be executed by and at the expense in all things of the Company and so as not to cause any injury to the said railway or to any such bridge or the approaches thereto within the South Western Company's boundary and shall within such boundary so execute any works as having regard to the

existing level of the roadway shall interfere with or impede as little as possible any improvement or widening of such railway or bridge or the introduction of side openings to such bridge. Provided that if the said engineer does not express his approval or disapproval of the said plans sections and specifications within fourteen days after the same have been submitted to him he shall be deemed to have approved thereof and if the said engineer shall refuse or neglect to superintend any operation the Company may execute the work without his superintendence :

- (b) If any injury or damage to the railways works or property of the South Western Company or any interruption of the South Western Company's traffic shall be in any way occasioned by the Company or by their contractors agents or workmen the Company shall forthwith make full compensation to the South Western Company in respect thereof :
- (c) All mains pipes and other works of the Company upon across over under or in any way affecting the South Western Railway or any bridge over or under the same or the approaches thereto within the South Western Company's boundary shall be at all times maintained in good repair by the Company and in default of their being so maintained the South Western Company may from time to time by notice in writing signed by their said engineer and delivered at the principal office for the time being of the Company require the Company to forthwith put into good repair any such main pipe or other work as aforesaid as may be in want of repair and if the Company for seven days after the receipt of such notice refuse or neglect to proceed with the repair of the same and do not dispute the necessity thereof the South Western Company may without any further notice to the Company repair the same and all expenses reasonably incurred by them in or about such repair shall be repaid to them by the Company. Provided that in case of accidents happening or immediate danger being apprehended to the South Western Railway or any bridge over or under such railway or the approaches thereto by reason of any such main pipe or other work as aforesaid being in want of repairs the South

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Western Company may without giving such notice as aforesaid make such repairs as may be necessary and the expenses of the same shall be repaid as hereinbefore provided :

- (d) The Company shall bear and on demand pay to the South Western Company all reasonable costs of the superintendence by them of the construction of the works and repairs thereof and all reasonable costs of watching lighting and protection of the South Western Railway with reference to and during such construction and repairs so far as such costs may be in case of difference determined by the arbitrator to have been necessary :
- (e) Any difference which may arise between the South Western Company and the Company touching any of the matters referred to in this section shall be decided by a single arbitrator to be appointed on the application of either party by the President for the time being of the Institution of Civil Engineers and the costs of such arbitration and of the parties thereto shall be in the discretion of the arbitrator.

For protection of South Eastern Railway Company and South Eastern and Chatham Railway Companies Managing Committee.

69. For the protection of the South Eastern Railway Company and the South Eastern and Chatham Railway Companies' Managing Committee (in this section referred to as "the railway company") the following provisions shall apply and have effect :—

- (a) Before laying down or executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across over under or in any way affecting the railway lands or property now or hereafter belonging to or used by the railway company and before entering upon the said railway lands and property the Company shall give at least one month's notice in writing to the railway company of their desire so to do except in case of urgent necessity in which case the Company shall give notice in writing to the railway company within twelve hours after they shall have entered upon the railway lands and property as aforesaid :
- (b) Fourteen days at least before commencing to lay down any main pipe or other work or (except in case of urgent necessity) to execute or effect any repair or renewal

of any main pipe or other work as aforesaid upon across over under or in any way affecting the railway lands or property of the railway company or the bridges approaches viaducts stations or other works or any level crossings over the railways plans sections and specifications shall be submitted to the engineer of the said Company for his approval and shall be reasonably approved by him in writing or in the event of such engineer failing to signify his approval or disapproval or to give such other direction within fourteen days after the submission of such plans sections and specifications as aforesaid he shall be deemed to have approved thereof and in the event of any difference thereon arising between the railway company and the Company such difference shall unless otherwise agreed be determined by an engineer to be appointed by the Board of Trade on the application of either the railway company or the Company and the decision of such engineer shall be final and conclusive between both parties and such work shall be executed in accordance with such plans sections and specifications as so approved and in such manner and under the superintendence of and subject to the reasonable approval of the said engineer. Provided that nothing herein contained shall authorise the Company to occupy or use permanently with their works the surface of any land or property of the railway company without the previous consent in writing of the secretary of the railway company. All such works shall be done by and at the expense of the Company who shall also restore and make good to the reasonable satisfaction of the railway company's engineer the roads over any bridges level crossings and approaches which the railway company either alone or jointly are or may be liable to maintain and which may be disturbed or interfered with by or owing to any operations of the Company and all such works and operations shall be constructed executed and done so as not to cause any injury to such railway bridges level crossings approaches viaducts stations works lands or property or interruption to the passage or conduct of traffic over such railway or at any station thereon and if any such injury or interruption shall arise from or in any way be owing to any of the

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works operations and matters aforesaid or the failure of any such mains pipes or works the Company shall make compensation to the railway company in respect thereof the amount of such compensation to be determined by arbitration in the manner hereinafter provided and such compensation together with full costs shall be recoverable by the railway company from the Company by all and the same means as any simple contract debt of like amount is recoverable :

- (c) In the event of any difference arising between the railway company and the Company touching any of the matters referred to in this section the same shall be determined by an engineer to be appointed by the Board of Trade at the request of either party and the costs of such arbitration shall be borne as the arbitrator directs.

For protec-
tion of main
roads and
bridges in
county of
Surrey.

70. For the protection of main roads county bridges and approaches thereto and other property in the county of Surrey the following provisions shall have effect (that is to say) :—

- (a) No works at any time affecting any main road or bridge belonging to or under the control of the Surrey County Council or the approaches to any such bridge shall be placed or constructed and no alteration or disturbance of any main road county bridge or approach road thereto shall be begun except in accordance with plans and specifications previously submitted to and signed by the surveyor for the time being of the county of Surrey and the said works shall be executed under the superintendence and to the reasonable satisfaction of the said surveyor and shall be thereafter maintained by the Company at their own expense and under such superintendence as aforesaid. Provided that if the said surveyor omit to signify his approval or disapproval of any such plans and specifications as aforesaid during fourteen days after the same shall have been submitted to him he shall be deemed to have approved of the same :
- (b) For the purposes of this section the term “main road” shall mean a main road under section eleven of the Local Government Act 1888 :
- (c) Notwithstanding anything in this Act contained the Company shall be responsible for and make good to the said Surrey County Council all costs losses damages

and expenses which they may be put to or sustain by reason of the execution or failure of any of the intended works or of any act or omission of the Company or of any of their contractors agents workmen or servants or any of the persons in their employ or in the employ of their contractors or others and the Company shall effectually indemnify and hold harmless the Surrey County Council from all claims and demands upon or against them by reason of such execution or failure or of any such act or omission :

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- (d) The costs charges and expenses of the said surveyor of and incidental to the superintendence of the works shall be paid by the Company.

71. If any difference arise between the Company and any highway board or road authority other than the Surrey County Council or railway canal or other company other than the London and South Western and South Eastern Railway Companies and South Eastern and Chatham Railway Companies Managing Committee whose lands or works the Company have power to cross under the authority of this Act as to the mode of laying down repairing altering or enlarging their mains pipes or other works in over or upon such lands or works or the facilities to be afforded for the same such difference shall be settled by an engineer or other fit person to be appointed by the Board of Trade at the request of either party.

Difference
with road
authorities
or railway
and other
companies.

SUPPLY OF GAS.

72. The standard price to be charged by the Company for gas supplied by them to persons who shall burn the same by ordinary meter shall be four shillings and threepence per one thousand cubic feet :

Dividend
dependent
on price
charged.

Provided that the Company may increase or reduce the price charged by them for gas above or below the standard price subject to a reduction or increase in the dividend payable by the Company on the ordinary capital as follows :—

In respect of any year during any part of which the price charged by the Company shall have been one penny or part of a penny above the standard price the dividend payable by the Company shall in respect of each penny or part of a penny by which the standard price shall have been increased be reduced below the standard rates of dividend by five

A.D. 1904.

shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds :

And in respect of any year during the whole of which the price charged by the Company shall have been one penny or more below the standard price the dividend payable by the Company may in respect of each penny by which the standard price shall have been reduced be increased above the standard rates by five shillings on every one hundred pounds of ordinary paid-up capital with a ten per centum standard rate of dividend and by three shillings and sixpence on every one hundred pounds of such capital with a seven per centum standard rate of dividend and so in proportion for any fraction of one hundred pounds.

Charges for
gas supplied
by prepay-
ment meters.

73.—(1) The Company may charge for any gas supplied through a prepayment meter a charge rate or rent not greater than for gas supplied to private consumers through any other kind of meter or by any other method of supply.

(2) The Company shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meters and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith :

The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Company in connection with the meter and fittings.

(3) The maximum charge for the hire of a prepayment meter without fittings shall be at the rate of sixpence per one thousand cubic feet.

(4) For the purpose of this section the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount of money prepaid therefor.

74. The Company may if they think fit allow discounts or rebates to consumers of gas not exceeding in any case ten per centum in consideration of prompt payment of gas rents and in addition thereto not exceeding fifteen per centum to large consumers upon such scale and subject to such conditions and regulations as may be prescribed by special contract in writing between the Company and any of such consumers. Provided that notice of the effect of this enactment shall be endorsed on every demand note for gas rent. Provided also that such discounts or rebates shall be of equal amount under like circumstances to all consumers.

A.D. 1904:
Discounts.

75. All gas supplied by the Company to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six tenths of an inch and from sunset to midnight not less than eight tenths of an inch in height at the main. The testings for pressure may be made at the top of a service pipe to a public lamp and any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall mutatis mutandis apply to such testing of pressure. Whenever the testing is made at the top of a service pipe aforesaid there shall be deducted from the observed pressure one tenth of an inch in order to correct for the difference between the pressure of gas at the top of such service pipe and that at which it is in the main pipe.

Pressure of
gas.

76. The prescribed number of candles shall be not less than fifteen.

Quality of
gas.

77. The testing place at the works of the Company shall be the testing place required to be provided by the Company by the Gasworks Clauses Act 1871 and the illuminating power and purity of the gas supplied by the Company may be tested at any time between noon and eleven o'clock in the afternoon on any and every day.

Testing
place.

78. The prescribed burner shall be Sugg's London Argand burner number one with a six inch by one and three quarter inch glass chimney but if at any time and so long as the gas flame rises above the top of that glass a six inch by two inch chimney shall be

Burner.

A.D. 1904. — used or such other burner as shall for the time being be approved by the Board of Trade.

As to construction and placing of pipes &c. between mains and meters.

79. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :
- (5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid. A.D. 1904.

80. If any person is required by the Company to give to them security for the payment of the price or rent of a meter the Company shall pay interest after the rate of four pounds per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands. Company to pay interest on money deposited as security for gas meter.

81.—(1) The Company may sell let for hire or otherwise deal in fix repair and remove but shall not manufacture engines stoves ranges dynamos motors pipes and other fittings for lighting for motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Company and the persons to or for whom the fittings are sold let fixed up repaired or removed. Power to supply gas fittings &c. for heating motive and other purposes and fittings not to be subject to distress.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

82. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section Anti-fluctuators for gas engines.

A.D. 1904. — the Company may cease to supply him with gas. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of the consumer.

Gas consumers to give notice to Company before removing.

83. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Company.

Power to refuse supply to persons in debt for other premises.

84. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Notice to discontinue supply of gas.

85. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Company.

Period of error in defective meters.

86. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

No penalty in case of unavoidable cause.

87. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions

of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company or was of so slight or unimportant a character as not materially to affect the value of the supply Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company.

A.D. 1904.

88. The Company may contract with the War Department or any other public department or any local authority company or persons beyond the limits of supply (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon Provided that the Company shall not exercise any of the powers conferred by this section within the authorised limits of supply defined by section four of the North Camp and Farnboro' District Gas Order 1877 confirmed by the Gas and Water Orders Confirmation (Abingdon &c.) Act 1877 beyond the limits of supply without the previous consent of the Aldershot Gas and Water Company.

Company may contract with local authority &c. for supply in bulk.

MISCELLANEOUS.

89. Proceedings commenced before the first day of January one thousand nine hundred and five for the recovery of any demand not exceeding fifty pounds and proceedings taken on and after that date for the recovery of any demand not exceeding one hundred pounds made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court.

Recovery of demands not exceeding 100/.

90. The Company may purchase or take on lease dwelling-houses for persons in their employ and may erect fix up maintain and let houses cottages and buildings for such persons upon the lands for the time being belonging to or leased by the Company.

Dwelling-houses for workmen.

A.D. 1904.

Power to
take licences
for use of
patents.

91. The Company may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production utilisation and distribution of coal gas the production of coke tar pitch asphaltum sulphate of ammonia ammoniacal liquor oil and the products from coal slack and other substances employed in or resulting from the manufacture of gas or otherwise in relation thereto but not so as to acquire any exclusive right to the working using exercising or putting in practice of any such invention.

Power to
apply for a
Provisional
Order to sup-
ply electrical
energy.

92. The Company if they think fit may under the provisions of the Electric Lighting Acts 1882 and 1888 make application for a Provisional Order or licence to supply electrical energy for public and private purposes and may apply their funds for the purpose of such application Provided that no such application shall be made by the Company without the previous consent in writing under seal of the urban district council for the urban district of Frimley.

Repeal of
Orders of
1890 and
1899.

93. The Order of 1890 and so much of the Gas Orders Confirmation (No. 1) Act 1890 as relates thereto and the Order of 1899 and so much of the Gas and Water Orders Confirmation Act 1899 as relates thereto are hereby repealed.

Copy of Act
to be regis-
tered.

94. The Company shall deliver to the Registrar of Joint Stock Companies a printed copy of this Act and he shall retain and register the same and if such copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty Every penalty under this section shall be recoverable summarily There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Saving for
War Depart-
ment.

95. Nothing in this Act contained shall be construed to prevent the Secretary of State for War from continuing to supply with gas the buildings houses and other premises in the parish

of Frimley now supplied with gas by him or any other buildings A.D. 1904:
houses or premises for the time being belonging to the War —
Department.

96. All costs charges and expenses of and incident and Costs of Act.
preliminary to the applying for preparing obtaining and passing
of this Act and otherwise in relation thereto shall be paid by
the Company.

A.D. 1904. The SCHEDULE referred to in the foregoing Act.

LANDS ON WHICH THE COMPANY MAY ERECT AND MAINTAIN
WORKS AND MANUFACTURE GAS AND RESIDUAL PRODUCTS
AND STORE GAS.

PART I.

A piece or parcel of land wholly situate in the urban district and parish of Frimley in the county of Surrey containing by admeasurement two acres or thereabouts forming part of a meadow called or known by the name of "Postboys Meadow" belonging or reputed to belong to and in the occupation of the trustees of the late Daniel Kelsey and numbered 210 on the Ordnance map scale $\frac{1}{2500}$ second edition 1897 of the said parish bounded on the north by land on which the existing gasworks are situate belonging or reputed to belong to and in the occupation of the limited company on the north-east and east for a distance of three hundred and sixty feet or thereabouts by land belonging or reputed to belong to the trustees of the late Daniel Kelsey and numbered 207 on the said Ordnance map on the south for a distance of four hundred and twenty feet or thereabouts by the remainder of the said Postboys Meadow and on the west by the River Blackwater.

PART II.

Certain lands houses and buildings belonging or reputed to belong to the limited company wholly situate in the urban district and parish of Frimley in the county of Surrey containing by admeasurement one acre one rood and thirty poles or thereabouts and bounded on the north in part by the London Road and in part by the gardens of houses Nos. 1 2 3 4 5 and 6 Bridge Cottages and Bridge House London Road on the east in part by a house garden and land No. 1 Bridge Cottages London Road and for a distance of one hundred and thirty feet or thereabouts by land belonging or reputed to belong to the trustees of the late Daniel Kelsey and numbered 207 on the Ordnance map scale $\frac{1}{2500}$ second edition 1897 of the parish of Frimley on the south for a distance of three hundred and forty-one feet or thereabouts by Postboys Meadow belonging or reputed to belong to the trustees of the late Daniel Kelsey and numbered 210 on the said Ordnance map and on the west by the River Blackwater.

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